Al-Ḍarūrī

Verified textual corrections from Ziad Bou Akl's 2015 Arabic–French critical edition

New source-controlled revisions to the existing Arabic–English parallel translation, with distinctions between transmitted text, editorial conjecture, and interpretation.

Control: Bou Akl, *Averroès : le philosophe et la Loi* (De Gruyter, 2015), Arabic edition and facing French translation. Manuscript witness cited through his apparatus: Escorial MS 1235.
Presentation: Content-only handoff prepared for the separate Web Dev 3 reader redesign. No CSS, toolbar, icons or live GitHub files modified.
Date: 19 October 2026

What has actually been checked

Six additional high-impact reader passages have been examined directly against the Arabic text and critical footnotes in Bou Akl's full 2015 edition, with the French facing pages used to check English meaning. These revisions build on the previous full-edition comparison, preserving its nine previously corrected passages, cross-edition concordance, study apparatus, 28 *Bidāya* applications and all 416 aligned reading segments.

There are two distinct kinds of textual intervention. The first restores a reading that Bou Akl reports from the Escorial manuscript against an omission or alternative printed by al-ʿAlawī. The second follows Bou Akl's editorial conjecture against both the manuscript and al-ʿAlawī. Conjectures are enclosed in Arabic angle brackets ⟨…⟩ and indicated by English square brackets where appropriate. None of these statements means that we independently examined the physical manuscript.

Marker	Evidence category	Present policy
[ا]	Escorial manuscript reported in Bou Akl's apparatus	Restore where context and source comparison warrant
[ع]	Al-ʿAlawī's 1994 reading	Preserve rejected readings in the change ledger
[م]	Al-Ghazālī, *al-Mustaṣfā*, source-parallel	Use as evidence, not as independent manuscript testimony
⟨…⟩	Modern editorial conjecture or supplement	Retain visibly and record source

> Coverage of this incremental pass: **six newly corrected reader sections** (R §§2, 20, 21, 145, 203, 218), **28 field-level replacements** (23 whole passage fields changed), **six new source notes** and updated earlier notes. This is a verifiable targeted correction, not a claim of exhaustive 311-section word-by-word collation.

Six consequential changes

R §2 / BA §2 — Practical knowledge is expressly divided into universal and particular

Bou Akl Arabic p.118, French p.119; reader PDF p.8. Manuscript [أ] preserves the additional balancing clause, absent in [ع].

EARLIER ARABIC	REVISED ARABIC
وهذه منها كلية وبعيدة في كونها مفيدة للعمل. فالجزئية	وهذه منها كلية وبعيدة في كونها مفيدة للعمل، ومنها جزئية وقريبة في كونها مفيدة للعمل. فالجزئية

EARLIER TRANSLATION / EDITORIAL READING	REVISED TRANSLATION / EDITORIAL READING
Some of this is universal and remote in usefulness to action. Particular knowledge includes…	Some is universal and indirect in its benefit for action; another part is particular and more directly useful for action. Particular knowledge includes…

The restored parallelism matters to the tripartite classification of the sciences. It explicitly relates theoretical, practical-general, practical-particular and instrumental knowledge instead of leaving a grammatically asymmetric taxonomy.

R §20 / BA §27 — The prayer-period rule depends on extended time, not simply on observing prayer times

Bou Akl Arabic p.132, French p.133; reader PDF p.18. The Escorial [أ] has اتساع (extension); al-ʿAlawī [ع] prints اتباع (following).

EARLIER ARABIC	REVISED ARABIC
الإجماع على اتباع أوقات أكثر الصلوات	الإجماع على اتساع أوقات أكثر الصلوات

EARLIER TRANSLATION / EDITORIAL READING	REVISED TRANSLATION / EDITORIAL READING
Consensus on observing the times of most prayers.	Consensus that most prayers have extended periods for performance.

This is not a cosmetic synonym: extended prayer windows establish why an obligation may be discharged at more than one point in time.

R §21 / BA §28 — Two manuscript clauses on time-limited and alternative obligations

Bou Akl Arabic p.132, French p.133; reader PDF p.18. Bou Akl's BA §28 p.132 prints two clauses that the apparatus marks as present in [أ] and absent in [ع].

EARLIER ARABIC	REVISED ARABIC
... العقاب على ترك إيقاع الصلاة فيه. ومثل هذا الاعتراض يلحق الواجب المخير، إلا أن تعدم الخصلتان ...	... العقاب على ترك إيقاع الصلاة فيه. وأما أول الوقت فهو ندب إذ ليس يلحق عقاب عن ترك إيقاع الصلاة فيه. ومثل هذا الاعتراض يلحق الواجب المخير، إلا أنه لا يتصور منها وجوب واحد كما تصور في آخر الوقت إلا أن تعدم الخصلتان ...

EARLIER TRANSLATION / EDITORIAL READING	REVISED TRANSLATION / EDITORIAL READING
Only the end of the period is obligatory; a similar objection attaches to choice among alternative acts.	At the beginning of the period the act is called recommended because omission then is not penalized; similarly, no individual option is obligatory unless the alternatives have become unavailable.

The restored distinctions improve Ibn Rushd's account of the *wājib muwassaʿ* (an obligation with an extended performance period) and the *wājib mukhayyar* (an obligation admitting alternative performances). The accompanying continuation remains preserved as a separate reader §22.

R §145 / BA §173 — The argument about the laws of previous communities

Bou Akl Arabic p.232, French p.233; reader PDF p.83. Bou Akl reads the manuscript marginal addition [ع] وليس يصح; conjectured يستحيل where it lacked a secure reading.

EARLIER ARABIC	REVISED ARABIC
لو كان كذلك لكان نقله من فروض الكفايات [...] على الأمة	لو كان كذلك لكان نقله من فروض الكفايات. وليس يصح على الأمة

EARLIER TRANSLATION / EDITORIAL READING	REVISED TRANSLATION / EDITORIAL READING
Its transmission would be a communal obligation; [...] [it is impossible] for the community...	Its transmission would be a communal obligation. It cannot be right that the community should...

The revision resolves a previously visible gap without presenting the 1994 conjecture as if it were the transmitted text.

R §203 / BA §250 — A command issued after a prohibition

Bou Akl Arabic p.284, French p.285; reader PDF p.113. الاقتضاء is a manuscript-attested reading. ⟨الوجوب⟩ and ⟨إيجابا⟩ are Bou Akl conjectures against [أ][ع], the latter supported by a Mustaṣfā parallel.

EARLIER ARABIC	REVISED ARABIC
تصرف الاقتصار ... إما على جهة الندب وإما على جهة الندب ... وإن احتمل أن يكون ندبًا أو إباحةً	تصرف الاقتضاء ... إما على جهة ⟨الوجوب⟩ وإما على جهة الندب ... وإن احتمل أن يكون ندبًا أو ⟨إيجابًا⟩

EARLIER TRANSLATION / EDITORIAL READING	REVISED TRANSLATION / EDITORIAL READING
An imperative's demand … obligation or recommendation; later, recommendation or permission.	An imperative's demand … [obligation] or recommendation; later, recommendation or [obligation].

The conjectural final alternative materially changes the range of possible legal effects. The manuscript still reads "permission"; the conjecture is therefore presented as a reasoned emendation and **not** an indisputable restoration.

R §218 / BA §267 — Resemblance-analogy joins the second rank, not the third

Bou Akl Arabic p.294, French p.295; reader PDF p.122. Both مناسبة and الثانية stand in the Escorial reading [أ] but were absent/altered in [ع].

EARLIER ARABIC	REVISED ARABIC
علة جامعة بينهما للحكم ... بالمرتبة الثالثة	علة جامعة بينهما مناسبة للحكم ... بالمرتبة الثانية

EARLIER TRANSLATION / EDITORIAL READING	REVISED TRANSLATION / EDITORIAL READING
A shared ground … unless it joins the third rank.	A common ground appropriate to the ruling … unless it joins the second rank.

This corrects the internal logic of Ibn Rushd's taxonomy: "within the meaning of the original case" corresponds to rank *two*. The additional suitability condition guards against treating any superficial resemblance as a legally appropriate ground.

Protecting the Web Dev 3 redesign

The companion ZIP is deliberately **not** a replacement website. It contains an authoritative `revised-book.json`, rebuilt `daruri.pdf`, a source-verified machine-readable audit and `merge_into_webdev3_reader.py`. The merge script replaces only the contents of `<script id="editionData">` in a user-specified *copy* of Web Dev 3's latest HTML. It compares unchanged prefix and suffix bytes and does not alter CSS, interface icons, buttons, JS interaction code, theme settings or GitHub.

The script refuses a new front-end schema without this compatible JSON script. Web Dev 3 should also regenerate the no-JavaScript static fallback from the new content: that fallback is deliberately left untouched rather than edited by unsafe pattern replacements.

Quality-control summary

The regenerated PDF contains 170 pages and 258 linked authorial reading sections, all 416 bilingual segments and 28 comparative *Bidāya* cases. A direct check of all 258 section-destination links updated 216 page references after the insertion of the additional early chapters; this also resolves three independently identified erroneous map values from the previous edition (R §§3, 7, 227). Six new supplementary notes have been added to the 175 existing notes, for 181 total.

Still required before declaring a definitive critical text

A complete enumeration of every variant in Bou Akl's Arabic edition against the 1994 base has *not* been independently certified, nor has a word-for-word comparison of all 311 French sections against our 416 English segments. The six corrections in this update were checked at the specific witness-referenced loci. Direct consultation and collation of Escorial MS 1235 remains outside the work completed. Those distinctions should remain explicit in the printed edition's editorial statement.

Source: Ziad Bou Akl, *Averroès : le philosophe et la Loi. Édition, traduction et commentaire de l'Abrégé du Mustaṣfā*, Scientia Graeco-Arabica 14 (Berlin: De Gruyter, 2015), Arabic pp.118, 132, 232, 284, 294; corresponding French pp.119, 133, 233, 285, 295; textual introduction pp.111–114.